



## POLICE DEPARTMENT

August 16, 2024

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

Re: CCRB Case No. 202302600 (Incident Date: March 5, 2023) regarding Police Officer Ishwarie Bangali, Tax No. 967431 (DADS No. 2024-31192)

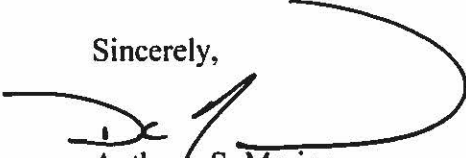
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202302600, pertaining to Police Officer Ishwarie Bangali. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Bangali would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner has determined that based on the context of this conversation, Police Officer Bangali did not make this remark as a proposition. However, the Police Commissioner has determined Police Officer Bangali's remark was discourteous and served no legitimate law enforcement purpose.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue no disciplinary action for the allegation that Police Officer Bangali propositioned the complainant. However, the Police Commissioner intends to issue Police Officer Bangali a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for discourtesy.

Sincerely,



Anthony S. Marino  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office



ERIC L. ADAMS  
MAYOR

**CIVILIAN COMPLAINT REVIEW BOARD**  
100 CHURCH STREET 10th FLOOR  
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235  
[www.nyc.gov/ccrb](http://www.nyc.gov/ccrb)



August 21, 2024

The Honorable Edward A. Caban  
Police Commissioner  
New York City Police Department  
One Police Plaza  
New York, NY 10038

Re: CCRB Case No. 202302600 (Incident Date: March 5, 2023) regarding Police Officer  
Ishwarie Bangali, Tax No. 967431 (DADS No. 2024-31192)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated August 16, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against PO Bangali would be detrimental to the Police Department's disciplinary process. Consequently, you concluded you would retain jurisdiction, and direct the issuance of a Schedule "A" Command Discipline and the forfeiture of one (1) vacation day to PO Bangali for the violation of Department policy regarding discourtesy. We disagree with your determination that, in addition to serving no legitimate law enforcement purpose, PO Bangali's conduct was merely discourteous. PO Bangali's questioning of the complainant amounted to inappropriate sexual innuendo in response to a plainly reasonable request: to be transported from the scene by a member of the same sex.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB respectfully requests that you permit the disciplinary process against PO Bangali to continue and allow the Charges and Specifications to be served upon PO Bangali.

Respectfully submitted,

  
Jonathan Darche  
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Jonathan Darche  
Executive Director  
NYC Civilian Complaint Review Board



## POLICE DEPARTMENT

August 26, 2024

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

Re: CCRB Case No. 202302600 (Incident Date: March 5, 2023) regarding Police Officer  
Ishwarie Bangali, Tax No. 967431 (DADS No. 2024-31192)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated August 21, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Ishwarie Bangali. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Bangali for the reasons expressed in my August 16, 2024 letter. Additionally, the Police Commissioner has taken into consideration that Police Officer Bangali has had no prior substantiated CCRB cases and no prior formal disciplinary history.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for discourtesy.

Sincerely,

Anthony S. Marino  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office

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